

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Volha Shauchenka	Team: Squad #15	CCRB Case #: 201707234	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 08/25/2017 1:40 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 2/25/2019	Precinct: 103
Date/Time CV Reported Fri, 08/25/2017 2:25 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 08/31/2017 4:33 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Gregory Gromling	14995	956704	103 PCT
2. POM Michael Boudouris	13949	955764	103 PCT
3. SGT Damien Bartels	00279	945146	103 PCT
4. An officer			103 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DTS Daniel Shkoditch	5852	951247	103 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Boudouris	Abuse: Police Officer Michael Boudouris did not obtain medical treatment for § 87(2)(b)	A . Unfounded
B . POM Gregory Gromling	Abuse: Police Officer Gregory Gromling did not obtain medical treatment for § 87(2)(b)	B . Unfounded
C . SGT Damien Bartels	Force: Sergeant Damien Bartels used physical force against § 87(2)(b)	C . Unsubstantiated
D . POM Gregory Gromling	Force: Police Officer Gregory Gromling used physical force against § 87(2)(b)	D . Unsubstantiated
E . POM Michael Boudouris	Force: Police Officer Michael Boudouris used physical force against § 87(2)(b)	E . Unfounded
F . An officer	Force: An officer used a chokehold against § 87(2)(b)	F . Unfounded
G . SGT Damien Bartels	Force: Sergeant Damien Bartels used physical force against § 87(2)(b)	G . Unsubstantiated
H . POM Gregory Gromling	Force: Police Officer Gregory Gromling used physical force against § 87(2)(b)	H . Unsubstantiated
I . POM Michael Boudouris	Force: Police Officer Michael Boudouris used physical force against § 87(2)(b)	I . Unfounded
J . SGT Damien Bartels	Force: Sergeant Damien Bartels used physical force against § 87(2)(b)	J . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
K . POM Michael Boudouris	Force: Police Officer Michael Boudouris used physical force against § 87(2)(b)	K . Exonerated
L . POM Michael Boudouris	Force: Police Officer Michael Boudouris used physical force against § 87(2)(b)	L . Exonerated
M . POM Gregory Gromling	Force: Police Officer Gregory Gromling used physical force against § 87(2)(b)	M . Unsubstantiated

Case Summary

On August 25, 2017, § 87(2)(b) filed this complaint on behalf of herself, her husband § 87(2)(b) and their daughter § 87(2)(b) with IAB over the telephone, generating log #17-32870. It was received by the CCRB on August 31, 2017.

On August 25, 2017, at approximately 1:40 p.m., in front of § 87(2)(b) in Queens, PO Michael Boudouris and PO Gregory Gromling of the 103rd Precinct allegedly did not obtain medical treatment for § 87(2)(b) (**Allegations A and B: Abuse of Authority, unfounded**). Sgt. Damien Bartels of the same command, PO Gromling and PO Boudouris, allegedly, took § 87(2)(b) to the ground (**Allegations C, D, E: Force, unsubstantiated, unsubstantiated, unfounded**). An unidentified officer allegedly placed § 87(2)(b) in a chokehold (**Allegation F: Force, unfounded**). Sgt. Bartels, PO Gromling, and PO Boudouris, allegedly, placed their legs on § 87(2)(b)'s back while handcuffing him (**Allegations G, H, I: Force, unsubstantiated, unsubstantiated, unfounded**). Sgt. Bartels pushed § 87(2)(b) (**Allegations J: Force, unsubstantiated**), while PO Boudouris also pushed § 87(2)(b) and § 87(2)(b) (**Allegations K and L: Force, exonerated**). While placing § 87(2)(b) in a police vehicle, PO Gromling pushed him in his left shoulder (**Allegation M: Force, unsubstantiated**).

§ 87(2)(b) recorded two video clips on her cell phone during the incident [BR 12, 13, originals].

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Michael Boudouris did not obtain medical treatment for § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Gregory Gromling did not obtain medical treatment for § 87(2)(b)

In his verified statement to the CCRB, § 87(2)(b) alleged that he was involved in an argument with § 87(2)(b) inside § 87(2)(b) at the location, during which § 87(2)(b) § 87(2)(b) poked him with a fine screwdriver in the chest [BR 03]. As a result, § 87(2)(b) sustained a half-inch hole in the chest. He called 911, and when PO Boudouris and PO Gromling arrived on the scene, he informed them he needed to go to the hospital since he was injured. PO Boudouris replied that § 87(2)(b)'s injury was not that serious, and neither officer called an ambulance for him. § 87(2)(b) did not make this allegation during his unverified phone statement to the CCRB on September 7, 2017 [BR 01].

During her interview at the CCRB, § 87(2)(b) confirmed that she, her two daughters § 87(2)(b) and § 87(2)(b) and her nephew § 87(2)(b) arrived on the scene after § 87(2)(b) had called her and informed her that he had been stabbed [BR 04]. § 87(2)(b) showed her his injury, which was not actively bleeding but the skin was broken. § 87(2)(b) inquired from PO Boudouris and PO Gromling why they could not do anything about her husband's injury, and PO Boudouris replied § 87(2)(b)'s injury was not that serious and he could have inflicted it himself. § 87(2)(b) did not mention this in her phone statement to IAB when she was filing the complaint [BR 05].

When interviewed at the CCRB, § 87(2)(b) testified that § 87(2)(b) informed the officers he was injured and they should call him an ambulance, to which PO Boudouris replied his injury was just a scratch and there was nothing the officers could do [BR 02].

§ 87(2)(b) described her father's injury as a half-centimeter wide laceration that was red. The skin was broken and had been bleeding, but was not actively bleeding at the time.

§ 87(2)(g)

During his verified statement to the CCRB, the body shop owner § 87(2)(b) testified that he was inside when § 87(2)(b) and § 87(2)(b) had an altercation and later heard § 87(2)(b) complain that § 87(2)(b) had stabbed him [BR 16]. At some point, § 87(2)(b) lifted his shirt up, but § 87(2)(b) did not see any injuries to him. When PO Gromling and PO Boudouris arrived, § 87(2)(b) was inside the shop and stated he did not hear what they were telling § 87(2)(b) since they were speaking quietly. He heard § 87(2)(b) tell them he had been stabbed, but did not hear what the officers responded.

When interviewed at the CCRB, PO Gromling stated that he and PO Boudouris responded to the location in regards to a 911 call involving assault in progress [BR 18]. § 87(2)(b) informed the officers he had been stabbed with a screwdriver, but there were no signs of a stab wound on his clothing. § 87(2)(b) eventually showed them a small laceration the size of a tip of a pen on his chest. PO Gromling did not recall if § 87(2)(b) complained of any pain from it, but he did offer § 87(2)(b) medical assistance, which he refused.

§ 87(2)(g) PO Boudouris confirmed that he offered medical assistance to § 87(2)(b) multiple times, but he refused saying he was fine [BR 19].

Sgt. Bartels arrived on the scene after § 87(2)(b) allegedly asked for medical assistance together with Det. Daniel Shkhoditch [BR 17]. Sgt. Bartels acknowledged observing a very small puncture on § 87(2)(b)'s chest [BR 17]. However, § 87(2)(b) did not request medical assistance nor did PO Gromling and PO Boudouris inform him of that. In Sgt. Bartels' presence, no medical assistance was offered to § 87(2)(b) since he determined his injury did not require it.

Photo of § 87(2)(b)'s chest taken at the CCRB during his interview revealed no signs of major injuries to his chest [BR 25]. There is a red mark in the middle of his chest, but it is unclear whether it was the result of the alleged stabbing.

Medical Treatment of Prisoner Report (MTPR) prepared for § 87(2)(b) by PO Gromling notes that he had a small laceration to his chest prior to police contact and refused medical attention both in the field and at the stationhouse [NYPD 31].

According to the 911 call recording associated with NYPD Event #§ 87(2)(b) § 87(2)(b) first reported that he had been stabbed and then stated he had been poked with a fork. He refused an ambulance when asked by the operator [NYPD 20].

§ 87(2)(g)

Thus, it is recommended that **Allegations A** and **B** be closed as **unfounded**.

Allegation (C) Force: Sergeant Damien Bartels used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Gregory Gromling used physical force against § 87(2)(b)

Allegation (E) Force: Police Officer Michael Boudouris used physical force against § 87(2)(b)

Allegation (F) Force: An officer used a chokehold against § 87(2)(b)

Allegation (G) Force: Sergeant Damien Bartels used physical force against § 87(2)(b)

Allegation (H) Force: Police Officer Gregory Gromling used physical force against § 87(2)(b)

Allegation (I) Force: Police Officer Michael Boudouris used physical force against § 87(2)(b)

§ 87(2)(b) alleged that after Sgt. Bartels spoke to § 87(2)(b) he came outside and stood directly in front of him [BR 17]. Sgt. Bartels informed § 87(2)(b) he was under arrest and grabbed his right hand, while PO Boudouris grabbed his left wrist. Next, § 87(2)(b) was forced to the ground by both officers. § 87(2)(b)'s knees made contact with the ground, and he then fell on his stomach. Prior to that, § 87(2)(b) was just standing against the wall with his hands behind his back. § 87(2)(b) denied pulling his arms away from the officers or doing anything else to resist. After § 87(2)(b) was on the ground, he felt something sharp on his back and believed that one of the officers placed their boot against his back. He did not know who did that, but believed it was Sgt. Bartels. § 87(2)(b) sustained abrasions to his left knee and a laceration to his lower back as a result and went to § 87(2)(b) on § 87(2)(b), after he was released from police custody. § 87(2)(b) § 87(2)(g) did not mention that an officer placed his foot on his back or that he sustained a laceration from it [BR 01].

§ 87(2)(b) stated that § 87(2)(b) was standing by a wall with his arms crossed when Sgt. Bartels informed him he was under arrest [BR 04]. Sgt. Bartels was the one who grabbed § 87(2)(b) by his arm, spun him around and pushed him on the back to the ground, after which, § 87(2)(b) fell to his knees. Sgt. Bartels, PO Gromling and PO Boudouris surrounded § 87(2)(b) and it appeared that one of them had the inside of their elbow pressed against the front of § 87(2)(b)'s neck, which she described as a “chokehold situation.” Eventually, § 87(2)(b) was face-down on the ground and handcuffed by Sgt. Bartels, while PO Boudouris had his knee on the back of § 87(2)(b)'s back. § 87(2)(b) complained that his shoulder was in pain. After § 87(2)(b) was released from police custody, he went to the emergency room § 87(2)(b). In her IAB phone statement, § 87(2)(b) § 87(2)(b) stated that her husband was thrown to the ground, his face was bleeding and officers lifted his arm behind his back [BR 05].

§ 87(2)(b)'s account § 87(2)(g) After Sgt. Bartels pushed § 87(2)(b) to the ground, PO Gromling and PO Boudouris approached § 87(2)(b) and placed their knees on his back. § 87(2)(b) was stating that he was in pain and was asking the officers to get off him, but he was not doing anything physically. § 87(2)(b) did not indicate that either officer used a chokehold against § 87(2)(b).

§ 87(2)(b) provided a similar account of this part of the incident, stating that Sgt. Bartels was the one who threw § 87(2)(b) to the ground and placed his knee on his spine [BR 15]. § 87(2)(b) also stated that § 87(2)(b) was not resisting and was screaming that he was in pain. § 87(2)(b) § 87(2)(b) observed abrasions to one of § 87(2)(b)'s knees and believed that his shoulder was also injured. She did not allege that any of the officers used a chokehold against § 87(2)(b).

§ 87(2)(b) noted he was washing cars and was walking back and forth into the shop during the incident [BR 16]. § 87(2)(b) was loud and cursing at the officers during the incident, but § 87(2)(b) did not recall any specific statements he was making. At some point, § 87(2)(b) came outside and observed Sgt. Bartels lying on the ground on his right side approximately three feet away from § 87(2)(b) who was standing. § 87(2)(b) did not know what had happened between them two. The remaining three officers, including Det. Sckhoditsch, grabbed § 87(2)(b) by his arms and put them behind his back. § 87(2)(b) attempted to pull his arms away and fell to his knees. § 87(2)(b) was inconsistent in explaining how and why § 87(2)(b) fell to the ground, and believed that he either slipped or was trying to run away from the officers. During that time, Sgt. Bartels remained on the ground until two of the officers who § 87(2)(b) could not identify leaned over § 87(2)(b) and grabbed his hands to handcuff him. § 87(2)(b) § 87(2)(b) lifted his knees in an attempt to stand up and was cursing at the officers. § 87(2)(b) was not doing anything with his arms and never fell flat to his stomach. § 87(2)(b) did not see any officers place § 87(2)(b) in a chokehold nor did § 87(2)(b) complain he could not breathe or was in pain. § 87(2)(b) did not recall who actually placed § 87(2)(b) in handcuffs nor did he see any officers place their legs on § 87(2)(b)'s back since he was never on the floor. § 87(2)(b) did not observe any injuries to § 87(2)(b) after he was lifted up.

Sgt. Bartels testified that when he determined that § 87(2)(b) would be under arrest and informed him of that, he asked § 87(2)(b) to turn around [BR 17]. § 87(2)(b) complied and both Sgt. Bartels and PO Gromling grabbed him by his arms. § 87(2)(b) started pulling them away and twisting his body. Sgt. Bartels instructed § 87(2)(b) to stop resisting, but he continued doing so. Therefore, Sgt. Bartels and PO Gromling took § 87(2)(b) to the ground after approximately two minutes. § 87(2)(b) landed on his chest, and Sgt. Bartels did not see what part of his body made contact with the ground first. Sgt. Bartels denied placing § 87(2)(b) in a chokehold or restricting his breathing. After § 87(2)(b) was on the ground, Sgt. Bartels knelt over him and placed his knee on § 87(2)(b)'s back to hold him for a few seconds as he continued to resist by tensing up. Sgt. Bartels denied placing his foot on § 87(2)(b)'s back and stated that PO Gromling did not do so either. After the incident, Sgt. Bartels started experiencing pain in his lower back. He was transported to § 87(2)(b) where he was diagnosed with § 87(2)(b).

PO Gromling stated that when Sgt. Bartels informed § 87(2)(b) he was under arrest he also informed him to place his hands behind his back [BR 18]. Both PO Gromling and Sgt. Bartels grabbed § 87(2)(b)'s arms, but he resisted and was told to put his hands behind his back at least three times. § 87(2)(b) continued to resist for approximately 30 to 60 seconds, and PO Gromling attempted to take him to the ground by holding his wrist and arm. At some point during that, PO Gromling observed Sgt. Bartels on the ground, but he was not certain what had happened. PO Gromling did not recall if Sgt. Bartels maintained his grip on § 87(2)(b) or assisted further in his handcuffing. PO Gromling was able to take § 87(2)(b) to the ground, and he first fell to his knees and then on his chest. PO Gromling squatted over § 87(2)(b) and was able to handcuff him relatively quickly although he continued resisting by pulling his arms away.

PO Gromling did not recall other officers assisting him during the handcuffing. PO Gromling did not place § 87(2)(b) in a chokehold nor did he observe other officers doing so. PO Gromling did not recall placing his legs or feet against § 87(2)(b) nor did he see other officers doing so. PO Gromling did not recall § 87(2)(b) complain of any pain or injury while he was being handcuffed.

In his CCRB interview, PO Boudouris testified that he was inside the shop with Det. Shkoditch placing § 87(2)(b) under arrest when § 87(2)(b)'s arrest was initiated [BR 19]. PO Boudouris did not see what transpired in the beginning nor did he hear any officers issue him any commands. Within a few minutes, PO Boudouris heard males and females screaming and looked outside for a brief moment. He observed Sgt. Bartels and PO Gromling on the ground, but did not recall if § 87(2)(b) was on the ground. PO Boudouris ensured that § 87(2)(b) was secured and left him in Det. Shkoditch's custody. When PO Boudouris came outside, § 87(2)(b) was being lifted up and he did not see any struggle between him and the officers. PO Boudouris did not assist Sgt. Bartels and PO Gromling in placing § 87(2)(b) in handcuffs nor did he observe the officers commit any of the alleged misconduct in this section. PO Boudouris did not observe § 87(2)(b) resist arrest either. After coming outside, PO Boudouris immediately turned his back towards the officers and started performing crowd control.

Det. Shkoditch's confirmed he was inside the shop when § 87(2)(b)'s arrest was initiated [BR 20]. Det. Shkoditch noted, however, that when he came outside, he observed some sort of the struggle between § 87(2)(b), Sgt. Bartels and PO Gromling. § 87(2)(b) was on the ground, possibly on his stomach, and the officers were either kneeling or standing over him. They were either attempting to place § 87(2)(b) in handcuffs or he was already handcuffed, but was struggling. Det. Shkoditch did not recall how and just generally remembered § 87(2)(b) being noncompliant. Sgt. Bartels looked at Det. Shkoditch and informed him that his back hurt. Det. Shkoditch did not witness what happened to the sergeant nor did he see how § 87(2)(b) got to the ground. Det. Shkoditch did not observe any officers commit the alleged force nor did he hear § 87(2)(b) scream or make any statements.



201707234_20171215_1431_DM.mp4

[BR 21]

Video 1 of 2



201707234_20171215_1431A_DM.mp4

[BR 22]

Video 2 of 2

According to video 1 of 2, § 87(2)(b) was standing by the wall near the entrance to the shop before he was arrested [BR 21]. At 2:38 minutes, Sgt. Bartels comes out of the shop and informs § 87(2)(b) he was going to be under arrest. The video ends. The next clip starts with one of § 87(2)(b)'s daughters screaming, "My father" [BR 22]. Two officers, unclear who, are briefly seen holding § 87(2)(b)'s left arm while standing to his left and behind him. § 87(2)(b) is still standing as well. At 2 seconds, the camera starts shaking and is pointed towards the ground, so § 87(2)(b)'s arrest is not in the view. At 6 seconds, one of § 87(2)(b)'s daughter's yells to the officers, "Why are you hurting him?" and § 87(2)(b) asks the same question. At 8 seconds, § 87(2)(b) is seen lying on the ground on his stomach and his arms are behind his back. Sgt. Bartels is kneeling over him on the left and PO Gromling is kneeling over to his right. The officers are holding § 87(2)(b)'s arms and are in the process of handcuffing him. The video does not depict § 87(2)(b) actively resisting. At 16 seconds, PO Gromling places his

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knee on § 87(2)(b)'s upper back and he starts screaming, "Aw, aw, aw." During this time, PO Boudouris is walking in front of § 87(2)(b) and the officers telling § 87(2)(b)'s relatives to back up. He blocks the view periodically, and at 19 seconds the camera is pointing to the side and § 87(2)(b) yells, "Aw, aw, aw," again. At 28 seconds, PO Gromling's leg is in the left top frame as well as § 87(2)(b)'s left leg. § 87(2)(b) seems to be still on the ground, but at 31 seconds the camera moves briefly, and § 87(2)(b) is seen standing. At 1:07 minutes, the camera captures § 87(2)(b)'s legs, but his knees are not visible. At 1:10 minutes, one of § 87(2)(b)'s daughters yells, "He is injured."

After reviewing video of 2 of 2 during his interview, Sgt. Bartels stated that neither he nor PO Gromling was doing anything to hurt § 87(2)(b) when he was screaming [BR 17]. Sgt. Bartels stated that at 10 seconds the video depicted his knee on § 87(2)(b)'s back. The rest of his testimony did not change.

Upon reviewing video 2 of 2, PO Gromling stated he did not recall that Sgt. Bartels assisted him in taking § 87(2)(b) to the ground [BR 18]. He also testified that neither he nor Sgt. Bartels were doing anything to hurt § 87(2)(b) while he was yelling in the video. PO Gromling noted that at 16 seconds, he paced his knee on § 87(2)(b)'s shoulder to stop him from resisting adding he did not mention that previously since he did not recall. PO Gromling also mentioned that § 87(2)(b) was resisting more than was shown by the video, and the rest of his testimony did not change.

Photos of § 87(2)(b)'s legs taken at the CCRB show a minor contusion to his right knee and signs of a recent abrasion to his left knee [BR 25]. There are no visible injuries to his back on the corresponding photo.

§ 87(2)(a) PHL § 18(6)

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§ 87(2)(b)'s arrest report #§ 87(2)(b) prepared by PO Gromling notes that § 87(2)(b) used force and a forcible takedown was used against him [NYPD 24]. Criminal Court Complaint prepared for § 87(2)(b) based on PO Gromling's testimony is consistent with the officers' account of the incident [NYPD 22].

Scratch and digital copies of the TRI report #§ 87(2)(b) prepared by Sgt. Bartels in regards to § 87(2)(b) are consistent with his testimony to the CCRB, but have some discrepancies between the two [NYPD 27]. The digital report only notes that Sgt. Bartels sustained minor swelling and had a complaint of substantial pain.

Scratch and digital copies of the TRI report #§ 87(2)(b) prepared by PO Gromling for § 87(2)(b) are also consistent with his statement to the CCRB [NYPD 28].

MTPR for § 87(2)(b) notes that he complained of shoulder pain and had a laceration to his knee [NYPD 31]. § 87(2)(b) refused to sign the report.

§ 87(2)(b) According to Sgt. Bartels' memo book, he was on sick leave until September 10, 2017[NYPD 16].

§ 87(2)(g) it is recommended that **Allegation E** be closed as **unfounded**.

§ 87(2)(g) It is therefore recommended that **Allegations C and D** be closed as **unsubstantiated**.

§ 87(2)(g) As a result, it is recommended that **Allegation F** is closed as **unfounded**.

§ 87(2)(g) it is recommended that **Allegation I** be closed as **unfounded**.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **unsubstantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **unsubstantiated**.

Allegation (J) Force: Sergeant Damien Bartels used physical force against § 87(2)(b)

Allegation (K) Force: Police Officer Michael Boudouris used physical force against

Allegation (L) Force: Police Officer Michael Boudouris used physical force against

§ 87(2)(b) stated that after § 87(2)(b) was taken to the ground, she also moved herself to the ground to get a better look at him [BR 02]. She did not move any closer and remained approximately eight feet away from her father. Sgt. Bartels approached her and grabbed her under her armpits screaming she was trying to interfere. § 87(2)(b) Rmotar's back made contact with a vehicle behind her and she remained standing. Her shoes fell off her feet as a result. She denied having made any contact with § 87(2)(b) or any officer or attempting to do so. Sgt. Bartels held on to § 87(2)(b) for approximately 30 seconds and then released her. She was not doing anything during that time. § 87(2)(b) also stated she observed her mother move backwards and asking, "Why did you push me?" However, she did not observe what had actually happened.

§ 87(2)(b) confirmed that § 87(2)(b) went to the ground to get a better look at § 87(2)(b) and was approximately three feet away from him [BR 04]. § 87(2)(b) was asking her father if he was ok and never made contact either with him or any officers. Eventually, § 87(2)(b) stood up, but § 87(2)(b) was not sure if she did so on her own or was forced to. PO Boudouris approached § 87(2)(b) and forcefully pushed her on her upper body. She stumbled back towards a car but never made

contact with it. PO Boudouris let go off § 87(2)(b) and her slipper fell off. Both § 87(2)(b) and § 87(2)(b) asked PO Boudouris why he did that and he approached § 87(2)(b) and pushed her on her right shoulder but with not as much force. § 87(2)(b) remained standing.

§ 87(2)(b) did not mention that any officers used force towards his wife and daughter [BR 03].

§ 87(2)(b) testified that neither of § 87(2)(b)'s relatives got closer to him during his arrest nor did officers push anyone against a car or in the shoulder [BR 15]. § 87(2)(b) estimated that § 87(2)(b)'s family members were approximately four to five feet away from him and the officers. They were yelling and officers were continuously telling them to be quiet.

Sgt. Bartels stated that after § 87(2)(b) was taken to the ground, he felt someone pull him away possibly by his shirt [BR 17]. The pulling stopped, and Sgt. Bartels observed § 87(2)(b) pull her father away from the officers. She was approximately an arm length away from the officers interfering with § 87(2)(b)'s arrest. Sgt. Bartels and PO Gromling placed § 87(2)(b) in handcuffs first, and eventually, § 87(2)(b) stopped pulling away § 87(2)(b). However, Sgt. Bartels did not recall how she stopped doing so. Sgt. Bartels then pushed § 87(2)(b) away while she was standing. There was a car behind her and she might have touched it to regain balance. During that time, § 87(2)(b) was standing on the sidewalk – Sgt. Bartels did not recall how far away – and was yelling. Sgt. Bartels had no physical contact with her nor did other officers. None of the other officers pushed § 87(2)(b). After § 87(2)(b) was lifted up and placed in the vehicle, Sgt. Bartels took § 87(2)(b)'s personal information in order to prepare a TRI report.

PO Boudouris testified that after he came outside, § 87(2)(b) might have been in the process of being lifted up and his relatives were approaching Sgt. Bartels and PO Gromling [BR 18]. The officers were unable to safely do so, and PO Boudouris immediately turned towards § 87(2)(b)'s family members and started performing crowd control since they were within a foot from § 87(2)(b) and the officers. § 87(2)(b)'s relatives were just yelling, and PO Boudouris did not observe any of them attempt to touch § 87(2)(b). PO Boudouris did not see anyone pull Sgt. Bartels away either. PO Boudouris extended his arms directing everyone to step back. He might have made physical contact with § 87(2)(b)'s family members but he never hit anyone. PO Boudouris might have touched § 87(2)(b) but noted he never pushed her so that she would stumble back. PO Boudouris described § 87(2)(b)'s relatives' behavior as threatening because they were approaching the arrest location and refusing to step back. Eventually, PO Boudouris was able to move them away so that § 87(2)(b) could be safely removed to the car. PO Boudouris did not recall other officers assisting him with crowd control nor did he see Sgt. Bartels push § 87(2)(b).

PO Gromling confirmed that § 87(2)(b)'s family members started yelling after he was taken down and were approaching closer to him [BR 18]. They were approximately five feet away, and PO Gromling did not recall if they got any closer. One of the officers, PO Gromling did not recall who, instructed § 87(2)(b)'s family members to step back. PO Gromling did not recall any officers push § 87(2)(b) against a car nor did he do so himself. PO Gromling did not recall § 87(2)(b) behaving in an aggressive and threatening manner either since he was focused on § 87(2)(b) at that point. PO Gromling did not recall § 87(2)(b) being pushed by any officers either. PO Gromling believed that during that time, PO Boudouris was inside the shop arresting § 87(2)(b).

30 seconds during which § 87(2)(b) was handcuffed in the video, § 87(2)(b) mentions that she was pushed by Sgt. Bartels. However, at 39 seconds, when the view is obstructed and there seems to be a lot of commotion, she states, “You got in my shoe.” In addition, based on Sgt. Bartels’ testimony, he pushed § 87(2)(b) after § 87(2)(b) was handcuffed and video after that was shaky and obstructed multiple times. § 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation J** is closed as **unsubstantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegations K** and **L** be closed as **exonerated**.

Allegation (M) Force: Police Officer Gregory Gromling used physical force against

§ 87(2)(b)

§ 87(2)(b) stated that when he was being escorted to a police vehicle by Sgt. Bartels, PO Gromling, and PO Boudoris, he shouted that his shoulder was in pain, and PO Gromling pushed him on that shoulder causing him to move forward to the police vehicle [BR 03]. § 87(2)(b) did not make this allegation in his phone statement [BR 01].

None of the civilian witnesses mentioned they observed PO Gromling or other officers push § 87(2)(b) on his shoulder [BR 02, 04, 15, 16].

PO Gromling confirmed he escorted § 87(2)(b) to the car and noted that § 87(2)(b) continued to resist by pressing himself against the car door frame to prevent the officer from placing him inside [BR 18]. PO Gromling placed § 87(2)(b)'s buttocks and legs inside the car and pushed him further inside so that he could slide along the seat.

None of the witness officers observed § 87(2)(b) being pushed inside the vehicle or recalled him being uncooperative after he was lifted up [BR 17, 19, 20].

§ 87(2)(g)

§ 87(2)(g) Therefore, it is recommended that **Allegation M** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is a first CCRB complaint filed by § 87(2)(b) and on behalf of § 87(2)(b) [BR 26].
- § 87(2)(b) has two previous CCRB complaints § 87(2)(b)
- PO Boudouris has been a member of the service for three years and has one previous CCRB complaint filed against him containing one physical force allegation that was closed as complainant unavailable.
- PO Gromling has been a member of the service for three years and this is a first CCRB complaint filed against him.
- Sgt. Bartels has been a member of the service for 10 years and has five previous CCRB complaints filed against containing eight allegations, none of which were substantiated § 87(2)(g)

Mediation, Civil and Criminal Histories

- The case is unsuitable for mediation due to the arrest associated with the incident.
 - None of the victims in the case have filed a Notice of Claim with the City of New York as of December 20, 2017 with regard to the incident [BR 24].
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: 15

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____

Signature _____ Print Title & Name _____ Date _____

Reviewer:

Signature

Print Title & Name

Date